

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

TERRANCE JEFFERSON,

Plaintiff

-against-

THE CITY OF NEW YORK,
DETECTIVE KEITH MCDOWELL,
DETECTIVE MICHAEL PARKS, and
POLICE OFFICER JOHN DOE of the
NEW YORK CITY POLICE DEPARTMENT
Defendant(s)

CV 12 - 2103

SUMMONS ISSUED

COMPLAINT AND
JURY DEMAND

WEINSTEIN FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ **APR 30 2012** ★

BROOKLYN OFFICE

PRELIMINARY STATEMENT

1. This is an action for monetary damages (compensatory and punitive) against The City of New York, Detectives Keith McDowell and Michael Parks, and Police Officer John Doe of the New York City Police Department, arising out of the false arrest, false imprisonment, and use of excessive force against Plaintiff Terrance Jefferson.

2. On November 1, 2011, Detectives Keith McDowell and Michael Parks, Police Officer John Doe, and possibly other unknown officers or detectives of the New York City Police Department (NYPD), acting under the color of state law, intentionally and willfully subjected Plaintiff to, *inter alia*, false arrest, false imprisonment and detention, and use of excessive force for acts of which Plaintiff was innocent. This unconstitutional and unreasonable seizure of the Plaintiff and his property was in violation of Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

3. The Plaintiff, Terrance Jefferson, through his attorneys, complaining of the Defendants, respectfully alleges:

JURISDICTION

4. This action is brought under 28 U.S.C. §§ 1331 and 1343, 42 U.S.C. §§ 1983, 1985 and 1988 and the Fourth, Fifth and Fifteenth Amendments to the Constitution of the United States. Pendant Jurisdiction, pendant party jurisdiction, and supplementary jurisdiction over Plaintiff's state law claims is asserted.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Eastern District of New York in that the claims alleged in the complaint occurred within the boundaries of the Eastern District of New York, particularly Kings County.

PARTIES

7. Plaintiff at all times relevant hereto resided in the City and State of New York County of Kings.

8. That at all times hereinafter mentioned, and upon information and belief, Defendant, City of New York, was at all times relevant hereto, a municipal corporation duly organized and existing under the laws, statutes and charters of the State of New York.

9. The NYPD was at all times relevant hereto, an agency of the Defendant City of New York.

10. That at all times hereinafter mentioned, and on information and belief, Defendants Detectives Keith McDowell, Michael Parks, and Police Officer John Doe were at all times relevant hereto, employees of Defendant City of New York, as detectives employed by the NYPD.

11. At all times mentioned herein, Defendants were acting under color of state and local law, to wit, under color of statutes, ordinances, regulations, policies, customs and usages of the City of New York and the State of New York.

12. That at all times hereinafter mentioned, and upon information and belief, the individual Defendants are named herein both personally and in their official representative capacities as police officers or detectives employed by Defendant, City of New York. And that each and all of the acts of the individual Defendants alleged herein were done by the individual Defendants and each of them under cover and pretense of the statutes and laws of the State of New York, and under and by virtue of their authority as police officers and employees of Defendant, City of New York.

13. That as a result of the foregoing, Defendant, The City of New York, is liable for the individual Defendants' acts under to the doctrine of "respondeat superior."

FACTUAL ALLEGATIONS

14. On the evening of November 1, 2011, Plaintiff Jefferson was sitting in the living room of a friend's residence at 1234 Pacific Street, Brooklyn, NY.

15. The residence belonged to a friend of Jefferson's named Lugo, who lived there with his wife and children.

16. At approximately 8:00 p.m., three members of the NYPD – including Detectives Keith McDowell and Michael Parks – entered the residence and ordered Jefferson to a bedroom.

17. The NYPD officers searched the residence for 20-30 minutes.

18. Jefferson later heard the officers say that they had found some crack cocaine.

19. Jefferson also learned that Lugo's nephew was in possession of marijuana.

20. Jefferson was not in possession of any drugs and did not see any drugs used or in plain view.

21. Jefferson was nonetheless arrested, taken to the 79th Precinct, strip-searched and placed into a cell and then an overnight holding pen.

22. The NYPD officers who arrested and handcuffed Jefferson tightened the handcuffs in such a way as to cause pain and anguish to Plaintiff.

23. Jefferson was released 15 hours later on his own recognizance.

24. Jefferson was charged with several counts of criminal possession of a controlled substance and arraigned.

25. Jefferson was required to make numerous additional appearances in Kings County Criminal Court.

26. On February 3, 2012, Plaintiff was advised by the Kings County District Attorney's Office that the criminal case against him was dismissed by the grand jury.

27. As a result of Defendants' actions, Jefferson was restrained, detained, and imprisoned, and deprived of his liberty and property without any right to do so against his will.

28. Jefferson's arrest was committed by Defendants without legal process and without probable cause.

29. Jefferson remained in custody for approximately 15 hours and was required to appear in Kings County Criminal Court numerous times until his case was dismissed.

30. Defendants acted maliciously and intentionally.

31. As a direct and proximate result of the acts of Defendants, Plaintiff suffered injuries including but not limited to, embarrassment, humiliation, loss of liberty, psychological and physical injury, pain, suffering, loss of appetite, loss of weight, emotional distress and mental anguish.

FIRST CLAIM FOR RELIEF
(FALSE ARREST AND ILLEGAL IMPRISONMENT)

32. Paragraphs 1 through 31 are herein incorporated by reference.

33. Defendants subjected Plaintiff to false arrest, imprisonment, and deprivation of liberty without probable cause.

34. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to Plaintiff under 42 U.S.C. §§ 1983 and 1985 and the New York State Constitution.

35. As a result of the false arrest, imprisonment, and deprivation of liberty, Plaintiff was damaged in the sum of One Million (\$1,000,000.00) Dollars.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally as follows:

A. In favor of Plaintiff in the amount of One Million (\$1,000,000.00) Dollars;

B. Awarding Plaintiff punitive damages in the amount of One Million (\$1,000,000.00) Dollars;

C. Awarding Plaintiff reasonable attorney's fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

SECOND CLAIM FOR RELIEF
(MUNICIPAL LIABILITY)

36. Paragraphs 1 through 35 are incorporated herein by reference.

37. Defendant City of New York is liable for the damages suffered by Plaintiff as a result of the conduct of its employees, agents, and servants.

38. Defendant City of New York knew or should have known of their employees', agents', or servants' propensity to engage in the illegal and wrongful acts detailed above.

39. Upon information and belief, Defendants and their supervisors have in the past falsely arrested individuals without probable cause, and

made, and allowed other fellow police officers to make false entries in official police department records to cover up and hide their wrongful conduct.

40. Defendant City of New York has failed to take steps necessary to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual Defendants in this and in similar cases involving misconduct.

41. Defendant City of New York has damaged Plaintiff by its failure to properly supervise, train, discipline, review, remove, or correct the illegal and improper acts of its employees, agents or servants in this and in similar cases involving police misconduct.

42. Defendants subjected Plaintiff to false arrest and false imprisonment.

43. Plaintiff has been damaged as a result of the wrongful, negligent and illegal acts of Defendant City of New York in the amount of One Million (\$1,000,000.00) Dollars.

WHEREFORE, Plaintiff demands judgment against the Defendants, jointly and severally as follows:

A. In favor of the Plaintiff in the amount of One Million (\$1,000,000.00) Dollars;

B. Awarding Plaintiff punitive damages in the amount of One Million (\$1,000,000.00) Dollars;

C. Awarding Plaintiff reasonable attorney's fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

THIRD CLAIM FOR RELIEF
(FOURTH AMENDMENT)

44. Paragraphs 1 through 43 are incorporated herein by reference.

45. Defendants Detectives Keith McDowell, Michael Parks, and others illegally arrested Plaintiff subjecting him to false arrest, imprisonment and deprivation of liberty without probable cause.

46. That as a result of the foregoing, Plaintiff has been deprived of his following rights, privileges and immunities secured him by the constitution and the laws of the United States: the right to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments; the rights of Plaintiff not to be deprived of life, liberty or property without due process of law under the Fourth and Fourteenth Amendments; and the right to be free from a deprivation of his civil rights in violation of the statutes made and provided.

47. Plaintiff has been damaged as a result of the wrongful, negligent and illegal acts of Defendants in the amount of One Million (\$1,000,000.00) Dollars.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally as follows:

A. In favor of Plaintiff in the amount of One Million (\$1,000,000.00) Dollars;

B. Awarding Plaintiff punitive damages in the amount of One Million (\$1,000,000.00) Dollars;

C. Awarding Plaintiff reasonable attorney's fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

FOURTH CLAIM FOR RELIEF
(FOURTEENTH AMENDMENT)

48. Paragraphs 1 through 47 are incorporated herein by reference.

49. Defendants Detectives Keith McDowell, Michael Parks, and others illegally arrested Plaintiff subjecting him to false arrest, imprisonment and deprivation of liberty without probable cause.

50. That as a result of the foregoing, Plaintiff has been deprived of his following rights, privileges and immunities secured him by the constitution and the laws of the United States: the right to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments; the rights of Plaintiff not to be deprived of life, liberty or property without due process of law under the Fourth and Fourteenth Amendments; and the right to be free from a deprivation of his civil rights in violation of the statutes made and provided.

51. Plaintiff has been damaged as a result of the wrongful, negligent and illegal acts of Defendants in the amount of One Million (\$1,000,000.00) Dollars.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally as follows:

A. In favor of Plaintiff in the amount of One Million (\$1,000,000.00) Dollars;

B. Awarding Plaintiff punitive damages in the amount of One Million (\$1,000,000.00) Dollars;

C. Awarding Plaintiff reasonable attorney's fees, costs and disbursements of this action; and

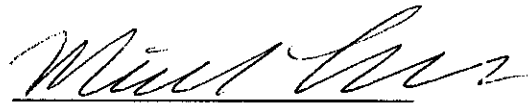
D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a jury trial.

Dated: New York, New York
April 30, 2012

BROMBERG LAW OFFICE, P.C.

By: 
Michael N. Litrownik
One of Plaintiff's Attorneys

Attorneys for Plaintiff
Brian L. Bromberg
Michael N. Litrownik
Bromberg Law Office, P.C.
40 Exchange Place, Suite 2010
New York, New York 10005
Tel: (212) 248-7906
Fax: (212) 248-7908